

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Filed: _____

DONALD DAVIS and LINDA VARGAS,

INDEX NO. _____

Plaintiffs,

Plaintiffs designate Bronx
County as the place of trial.

-against-

S U M M O N S

P.O. HARONID PENA (Tax ID 963686), P.O. CHRISTOPHER
CARTER (Tax ID 958374), THE CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT and POLICE OFFICERS
JANE/JOHN DOES 1-10 (actual names unknown at this time),

The basis of venue is
the County in which the
cause of action arose.

Defendants.

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve
a copy of your answer on the plaintiffs' attorneys within 20 days after the service of this
summons, exclusive of the day of service of this summons, or within 30 days after service of this
summons is complete if this summons is not personally delivered to you within the State of New
York.

In case of your failure to answer this summons, a judgment by default will be taken
against you for the relief demanded in the complaint, together with the costs of this action.

Dated: New York, New York
November 19, 2020

ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiffs
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

CHRISTOPHER CARTER
40th Precinct
257 Alexander Avenue
Bronx, New York 10454

HARONID PENA
40th Precinct
257 Alexander Avenue
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THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT
1 Police Plaza
Room 300
New York, New York 10038

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DONALD DAVIS and LINDA VARGAS,

Plaintiffs,

-against-

P.O. HARONID PENA (Tax ID 963686), P.O. CHRISTOPHER
CARTER (Tax ID 958374), THE CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT and POLICE OFFICERS
JANE/JOHN DOES 1-10 (actual names unknown at this time),

Defendants.

INDEX NO.

VERIFIED COMPLAINT

Plaintiffs, by their attorneys, ASHER & ASSOCIATES, P.C., as and for their Verified
Complaint, respectfully allege, upon information and belief:

1. The plaintiff, DONALD DAVIS (hereinafter “DAVIS”), at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.
2. The plaintiff, LINDA VARGAS (hereinafter “VARGAS”), at all times herein mentioned was and still is a resident of the County of Bronx and the State of New York.
3. Defendant CITY OF NEW YORK (hereinafter “CITY”) is a municipal corporation, incorporated pursuant to the laws of the State of New York, which operates the New York City Police Department (hereinafter “NYPD”), and as such is the public employer of the Defendant officers herein.
4. Defendant P.O. HARONID PENA (hereinafter “PENA”) was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant and/or employee of Defendant CITY and within the scope of her employment.
5. Defendant P.O. CHRISTOPHER CARTER (hereinafter “CARTER”) was a NYPD police officer, and at all times relevant hereto, acted in that capacity as agent, servant

and/or employee of Defendant CITY and within the scope of her employment.

6. Defendant POLICE OFFICERS "JOHN" or "JANE" DOES were NYPD police officers, and at all times relevant hereto, acted in that capacity as agents, servants and/or employees of Defendant CITY and within the scope of their employment.

7. On or about January 19, 2019, the defendant PENA was assigned to the 40th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

8. On or about January 19, 2019, the defendant CARTER was assigned to the 40th Precinct of the NYPD at the time of the occurrences alleged in this complaint. He is being sued in both his individual and official capacities.

9. On or about January 19, 2019, the defendant POLICE OFFICERS "JOHN" or "JANE" DOES were assigned either the to the 40th Precinct of the NYPD at the time of the occurrences alleged in this complaint. They are being sued in both their individual and official capacities.

10. At all relevant times hereto, Defendants were acting under the color of state and local law. Defendants are sued in their individual and official capacities. At all relevant times hereto, Defendant CITY was responsible for making and enforcing the policies of NYPD and was acting under the color of law, to wit, under the color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York.

11. At all times hereinafter mentioned, the defendant NYPD had the duty to provide, supervise and control the city streets and protect the well-being and safety of the public.

12. At all relevant times, the defendant NEW YORK was responsible for the training

of its police officers, and more particularly, the individually named defendants PENA, CARTER and “JOHN” and “JANE” DOES.

13. On January 19, 2019, the plaintiffs DONALD DAVIS and LINDA VARGAS were returning home from a medical appointment and were walking holding hands on East 149 Street, near its intersection with Third Avenue, Bronx, New York. There were two women and a man walking behind them who started to complain that they were walking too slowly. The women then hit the joined hands of the plaintiffs in an attempt to separate them. DAVIS, VARGAS and the two women engaged in a verbal dispute which led to a physical altercation. The male took out a machete and threatened to strike DAVIS.

14. At this time, police officers from the 40th Precinct arrived on the scene. VARGAS is pushed by a police officer, believed to be either PENA or CARTER, against the wall of the adjacent building hitting the right side of her face against a metal fence. VARGAS is searched, but not taken into custody.

15. When DAVIS bent down to pick up his jewelry and phone which had fallen during the altercation, police officers, believed to be PENA and CARTER, placed him in handcuffs, dragged him to the patrol car and struck his head against the door of the vehicle while pushing him inside.

16. DAVIS started to bleed from the side of his head and started to complain of inability to breathe. DAVIS was transported by ambulance while in custody to Lincoln Hospital where he remained handcuffed and shackled to the hospital bed for four days prior to being arraigned at Central Booking. DAVIS was charged with robbery, assault and petit larceny. DAVIS was

released from custody but had to return to Court several times until the charges against him were dismissed on July 24, 2019.

17. As a result of the aforementioned actions by the police officer, VARGAS suffered injuries to her right shoulder, right jaw and right arm and bruising to her back, requiring emergency room treatment at Lincoln Hospital and follow up medical care with a private physician.

18. As a result of the aforementioned actions by the police officers, DAVIS suffered injuries to his head requiring inpatient treatment at Lincoln Hospital and follow up medical care with a private physician.

19. The Plaintiffs are unable to identify at this time the names of any of the other individual officers involved, other than he believes that there were officers from the 40th Precinct.

20. On January 19, 2019, there were multiple police officers who were present in the location, witnessed the incident and failed to intervene.

21. On January 19, 2019, the plaintiffs were subjected to both verbal and physical abuse by multiple members of the NYPD, including the individually named defendants PENA and CARTER.

22. On January 19, 2019, plaintiffs were caused to suffer severe personal injuries.

23. Prior to the commencement of this action, notices of claim in writing were served on behalf of DAVIS and VARGAS upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

24. Within ninety days (90) of the occurrence herein, a notice of claim in writing was served on behalf of DAVIS and VARGAS upon THE CITY OF NEW YORK and NEW YORK

CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

25. Within ninety days (90) of January 19, 2019, a notice of claim in writing was served on behalf of DAVIS and VARGAS upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT in accordance with Section 50-e of the General Municipal Law.

26. Prior to the commencement of this action, notice of the intention of DAVIS and VARGAS to commence an action, unless the claim presented was adjusted within the prescribed time as set forth by applicable law to adjust such claims, was served on behalf of DAVIS and VARGAS upon THE CITY OF NEW YORK and NEW YORK CITY POLICE DEPARTMENT.

27. Although more than thirty (30) days have elapsed since service of such notice of claim, THE CITY OF NEW YORK and/or NEW YORK CITY POLICE DEPARTMENT neglected and has refused to pay said claim or adjust same.

28. Hearings pursuant to General Municipal Law 50-h have been held.

29. This action is commenced within one (1) year and ninety (90) days from January 19, 2019, the date the accident as herein set forth occurred.as tolled pursuant to Executive Order 202.14 as extended by 202.27, 202.28, 202.38, 202.48, 202.55, 202.60 and 202.67.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DONALD DAVIS

Pursuant to §1983 (EXCESSIVE FORCE)

30. Paragraphs 1 through 29 are hereby realleged and incorporated by reference herein.

31. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

32. That Defendants had no legal cause or reason to use excessive force in effectuating DAVIS's arrest or after DAVIS was arrested and in custody.

33. That Defendants violated DAVIS's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

34. That at the time of the arrest or while in custody, DAVIS did not pose a threat to the safety of the arresting officers.

35. That DAVIS was not actively resisting arrest or attempting to evade arrest.

36. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected DAVIS to excessive force while effectuating his arrest.

37. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

38. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of DAVIS's rights, subjected DAVIS to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

39. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of DAVIS's civil rights, including but not limited to the right to be free from the application of excessive force.

40. That upon information and belief, in 2019, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

41. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

42. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

43. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of DAVIS's rights alleged herein.

44. By reason of the foregoing, DAVIS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

45. The aforementioned use of excessive force in effectuating the arrest and detention of the plaintiff by PENA, CARTER and unknown officers "JOHN" or "JANE" DOES, violated the plaintiff's constitutional rights.

46. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

47. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of New York, and under the authority of their office as police officers for such city and county.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DAVIS

Pursuant to State Law (EXCESSIVE FORCE)

48. Paragraphs 1 through 47 are hereby realleged and incorporated by reference herein.

49. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure.

50. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

51. That Defendants had no legal cause or reason to use excessive force in effectuating DAVIS's arrest or after DAVIS was arrested and in custody.

52. That at the time of the arrest, DAVIS did not pose a threat to the safety of the arresting officers.

53. That DAVIS was not actively resisting arrest or attempting to evade arrest.

54. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

55. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of DAVIS's

rights, subjected DAVIS to excessive force while effectuating his arrest, in violation of the laws of the State of New York.

56. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of DAVIS's civil rights, including but not limited to the right to be free from the application of excessive force.

57. By reason of the foregoing, DAVIS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DAVIS

Pursuant to State Law (Assault and Battery)

58. Paragraphs 1 through 57 are hereby realleged and incorporated by reference herein.

59. That Defendants intended to cause harmful bodily contact to DAVIS.

60. That Defendants, in a hostile manner, voluntarily caused DAVIS'S injuries.

61. That Defendants' contact with DAVIS constituted a battery in violation of the laws of the State of New York.

62. That by reason of the foregoing, DAVIS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DAVIS
Pursuant to §1983 (FAILURE TO INTERVENE)

63. Paragraphs 1 through 62 are hereby realleged and incorporated by reference herein.

64. That Defendants failed to intervene when Defendants knew or should have known that DAVIS's constitutional rights were being violated.

65. That Defendants had a realistic opportunity to intervene on behalf of DAVIS, whose constitutional rights were being violated in their presence.

66. That a reasonable person in the Defendants' position would know that DAVIS's constitutional rights were being violated.

67. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of DAVIS's rights, deprived DAVIS of his liberty when they failed to intervene to protect him from Defendants' use of excessive force and cruel and unusual punishment, in violation of DAVIS's rights pursuant to the Fourth and Eighth Amendments of the United States Constitution.

68. That upon information and belief, Defendants had a policy and /or custom of failing to intervene to protect citizens from excessive force by police officers. Thus, as a result of the above described policies and customs, DAVIS was not protected from Defendants' unconstitutional actions.

69. That by reason of the foregoing, DAVIS suffered physical and psychological injuries, traumatic stress, mental anguish, economic damages including attorney's fees.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DAVIS

Pursuant to State Law (Negligence)

70. Paragraphs 1 through 69 are hereby realleged and incorporated by reference herein.

71. That Defendants were reckless, careless, and indifferent to DAVIS's physical well-being while DAVIS was in Defendants' custody.

72. That Defendants had a duty to exercise reasonable care to secure the safety of DAVIS from injury while in Defendants' charge.

73. That Defendants breached their duty to DAVIS when Defendants failed to exercise reasonable care to secure the safety of DAVIS while in Defendants' charge, or when Defendants discontinued their aid or protection of DAVIS and left DAVIS in a worse position than when Defendants took charge of him.

74. That by the actions described above, defendants jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff.

75. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

76. As a result of the foregoing, DAVIS was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured. All of said injuries may be permanent.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF DAVIS

Pursuant to State Law (RESPONDEAT SUPERIOR)

77. Paragraphs 1 through 76 are hereby realleged and incorporated by reference herein.

78. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.

79. That at all times Defendants were acting within the scope of their employment.

80. That Defendant CITY was able to exercise control over Defendants activities.

That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior.

81. All of said injuries may be permanent. By reason of the foregoing, DAVIS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A SEVENTH CAUSE OF ACTION

ON BEHALF OF PLAINTIFF DAVIS

Pursuant to § 1983 (FALSE ARREST)

82. Paragraphs 1 through 81 of this complaint are hereby realleged and incorporated by reference herein.

83. That Defendants had neither valid evidence for the arrest of DAVIS nor legal cause or excuse to seize and detain him.

84. That in detaining DAVIS and without a fair and reliable determination of probable cause, Defendant CITY abused its power and authority as a policymaker of the New York City Police Department under the color of State and/or local law. It is alleged that CITY,

via their agents, servants and employees routinely charged persons with crimes they did not commit. DAVIS was but one of those persons.

85. Upon information and belief, it was the policy and/or custom of Defendant CITY to inadequately supervise and train its officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

86. As a result of the above described policies and customs, the officers, staff, agents and employees of Defendant CITY believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated. In addition, the City of New York had and has a policy, custom, and/or practice of detaining persons for an excessive period of time prior to arraignment.

87. The above described policies and customs demonstrated a deliberate indifference on the part of the policymakers of the CITY to the constitutional rights of arrestees and were the cause of the violations of DAVIS's rights alleged herein.

88. By reason of Defendants acts and omissions, Defendant CITY, acting under color of state law and within the scope of its authority, in gross and wanton disregard of DAVIS's rights, subjected DAVIS to an unlawful detention, in violation of the Fourth and Fourteenth Amendments of the United States Constitution and the laws of the State of New York.

89. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of DAVIS's civil rights, including but not limited to the right to be free from being falsely arrested.

90. By reason of the foregoing, DAVIS suffered physical injuries, mental injuries, deprivation of liberty and privacy, terror, humiliation, damage to reputation and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A EIGHTH CAUSE OF ACTION

ON BEHALF OF PLAINTIFF DAVIS

(Pursuant to State Law (FALSE ARREST))

91. Paragraphs 1 through 90 of this complaint are hereby realleged and incorporated by reference herein.

92. Plaintiff was arrested, held in custody, restrained of his liberty and forced to spend hours incarcerated.

93. This arrest and detention was made without warrant or other legal process and was unlawful, wrongful, malicious and without right in that no crime had been committed and in that there was no reason or cause for belief that plaintiff had committed any crime.

94. In doing all the acts and things aforesaid, defendants acted willfully, maliciously and without right, reason or probable cause.

95. Defendants, their agents, servants and/or employees wrongfully caused plaintiff to be arrested, jailed and charged with a crime.

96. Said false arrest and false imprisonment of plaintiff and the ensuing restraint of his liberty caused him great humiliation and as a result of which he has been damaged.

97. Prior to the arrest, plaintiff had enjoyed a good reputation in the City and State of New York.

98. The charges against plaintiff were wholly dismissed.

99. By reason of the foregoing false arrest, plaintiff's health was impaired; plaintiff suffered great mental distress, indignity and humiliation; his reputation and character were injured; his earning power permanently impaired.

100. Due to the foregoing, plaintiff is entitled to damages.

AS AND FOR A NINTH CAUSE OF ACTION

ON BEHALF OF PLAINTIFF VARGAS

Pursuant to §1983 (EXCESSIVE FORCE)

101. Paragraphs 1 through 100 are hereby realleged and incorporated by reference herein.

102. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

103. That Defendants had no legal cause or reason to use excessive force on effectuating VARGAS's arrest or after VARGAS was arrested and in custody.

104. That Defendants violated VARGAS's Fourth and Fourteenth Amendment right to be free from unreasonable seizures when they used excessive force against him.

105. That at the time of the arrest or while in custody, VARGAS did not pose a threat to the safety of the arresting officers.

106. That VARGAS was not actively resisting arrest or attempting to evade arrest.

107. That Defendant CITY, through its officers, agents, and employees, unlawfully subjected VARGAS to excessive force while effectuating his arrest.

108. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

109. That by reason of Defendants acts and omissions, acting under color of state law and within the scope of his authority, in gross and wanton disregard of VARGAS's rights, subjected VARGAS to excessive force while effectuating his arrest, in violation of his rights pursuant to the Fourth and Fourteenth Amendments of the United States Constitution.

110. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of VARGAS's civil rights, including but not limited to the right to be free from the application of excessive force.

111. That upon information and belief, in 2019, Defendants and CITY had a policy or routine practice of using excessive force when effectuating arrests.

112. That upon information and belief, it was the policy and/or custom of defendant CITY to inadequately train, supervise, discipline, and/or terminate their officers, staff, agents and employees, thereby failing to adequately discourage further constitutional violations on the part of their officers, staff, agents and employees.

113. That as a result of the above described policies and customs, the officers, staff, agents and employees of defendant CITY, believed that their actions would not be properly monitored by supervisory officers and that misconduct would not be investigated or sanctioned, but would be tolerated.

114. That the above described policies and customs demonstrate a deliberate indifference on the part of the policymakers of Defendant CITY to the constitutional rights of arrestees and were the cause of the violations of VARGAS's rights alleged herein.

115. By reason of the foregoing, VARGAS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

116. The aforementioned use of excessive force in effectuating the arrest and detention of the plaintiff by PENA, CARTER and unknown officers “JOHN” or “JANE” DOES, violated the plaintiff’s constitutional rights.

117. This action arises under the United States Constitution, particularly under the provisions of the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States, and under Federal law, particularly Title 42 of the United State Code, Section 1983.

118. Each and all of the acts of the defendants were done by the defendants, each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, County of New York, and under the authority of their office as police officers for such city and county.

AS AND FOR A TENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VARGAS
Pursuant to State Law (EXCESSIVE FORCE)

119. Paragraphs 1 through 118 are hereby realleged and incorporated by reference herein.

120. That the incident that resulted from the intentional application of physical force by Defendants constituted a seizure.

121. That the use of excessive force in effectuating the seizure was unreasonable under the circumstances.

122. That Defendants had no legal cause or reason to use excessive force in effectuating VARGAS's arrest or after VARGAS was arrested and in custody.

123. That at the time of the arrest, VARGAS did not pose a threat to the safety of the arresting officers.

124. That VARGAS was not actively resisting arrest or attempting to evade arrest.

124. That Defendants' actions were grossly disproportionate to the need for action and were unreasonable under the circumstances.

125. That by reason of Defendants acts and omissions, Defendants, acting under color of state law and within the scope of their authority, in gross and wanton disregard of VARGAS's rights, subjected VARGAS to excessive force while effectuating his arrest, in violation of the laws of the State of New York.

126. That Defendants had the opportunity to intervene, and failed to do so, to prevent violations of VARGAS's civil rights, including but not limited to the right to be free from the application of excessive force.

127. By reason of the foregoing, VARGAS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A ELEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VARGAS
Pursuant to State Law (Assault and Battery)

128. Paragraphs 1 through 127 are hereby realleged and incorporated by reference herein.

129. That Defendants intended to cause harmful bodily contact to VARGAS.

130. That Defendants, in a hostile manner, voluntarily caused VARGAS'S injuries.

131. That Defendants' contact with VARGAS constituted a battery in violation of the laws of the State of New York.

132. That by reason of the foregoing, VARGAS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

AS AND FOR A TWELFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VARGAS
Pursuant to §1983 (FAILURE TO INTERVENE)

133. Paragraphs 1 through 132 are hereby realleged and incorporated by reference herein.

134. That Defendants failed to intervene when Defendants knew or should have known that VARGAS's constitutional rights were being violated.

135. That Defendants had a realistic opportunity to intervene on behalf of VARGAS, whose constitutional rights were being violated in their presence.

136. That a reasonable person in the Defendants' position would know that VARGAS's constitutional rights were being violated.

137. That by reason of Defendants' acts and omissions, Defendants, acting under the color of state law and within the scope of their authority, in gross and wanton disregard of VARGAS's rights, deprived VARGAS of his liberty when they failed to intervene to protect him from Defendants' use of excessive force and cruel and unusual punishment, in violation of VARGAS's rights pursuant to the Fourth and Eighth Amendments of the United States Constitution.

138. That upon information and belief, Defendants had a policy and /or custom of failing to intervene to protect citizens from excessive force by police officers. Thus, as a result of the above described policies and customs, VARGAS was not protected from Defendants' unconstitutional actions.

139. That by reason of the foregoing, VARGAS suffered physical and psychological injuries, traumatic stress, mental anguish, economic damages including attorney's fees.

AS AND FOR A THIRTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VARGAS

Pursuant to State Law (Negligence)

140. Paragraphs 1 through 139 are hereby realleged and incorporated by reference herein.

141. That Defendants were reckless, careless, and indifferent to VARGAS's physical well-being while VARGAS was in Defendants' custody.

142. That Defendants had a duty to exercise reasonable care to secure the safety of VARGAS from injury while in Defendants' charge.

143. That Defendants breached their duty to VARGAS when Defendants failed to exercise reasonable care to secure the safety of VARGAS while in Defendants' charge, or when Defendants discontinued their aid or protection of VARGAS and left VARGAS in a worse position than when Defendants took charge of him.

144. That by the actions described above, defendants jointly and severally, negligently caused injuries, emotional distress and damage to the plaintiff.

145. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.

146. As a result of the foregoing, VARGAS was deprived of his liberty, experienced injury, pain and suffering, psychological and emotional injury, great humiliation, costs and expenses, and was otherwise damaged and injured. All of said injuries may be permanent.

AS AND FOR A FOURTEENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF VARGAS

Pursuant to State Law (RESPONDEAT SUPERIOR)

147. Paragraphs 1 through 146 are hereby realleged and incorporated by reference herein.

148. That Defendants were acting in furtherance of the duties owed to their employer, defendant CITY.

149. That at all times Defendants were acting within the scope of their employment.

150. That Defendant CITY was able to exercise control over Defendants activities.

That Defendant CITY is liable for Defendants actions under the doctrine of respondeat superior.

151. All of said injuries may be permanent. By reason of the foregoing, VARGAS suffered physical injuries, mental injuries, emotional injuries, economic injury, trauma, humiliation, terror, damage to reputation, and other psychological injuries. All of said injuries may be permanent.

WHEREFORE, Plaintiffs DAVIS and VARGAS respectfully requests that judgment be entered:

1. Awarding PLAINTIFF DAVIS and VARGAS compensatory damages in a

full and fair sum to be determined by a jury;

2. Awarding PLAINTIFF DAVIS and VARGAS punitive damages in an amount to be determined by a jury;

3. Awarding PLAINTIFF DAVIS and VARGAS interest from January 19, 2019;

4. Awarding PLAINTIFF DAVIS and VARGAS reasonable attorney's fees pursuant to 42 USC §1988; and

5. Granting such other and further relief as to this Court seems proper.

Dated: New York, New York
November 19, 2020

Roberta D. Asher

By: Roberta D. Asher
ASHER & ASSOCIATES, P.C.
Attorneys for Plaintiffs
111 John Street
Fourteenth Floor
New York, New York 10038
(212) 227-5000

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DONALD DAVIS and LINDA VARGAS,

Plaintiffs,

-against-

P.O. HARONID PENA (Tax ID 963686), P.O. CHRISTOPHER
CARTER (Tax ID 958374), THE CITY OF NEW YORK, NEW
YORK CITY POLICE DEPARTMENT and POLICE OFFICERS
JANE/JOHN DOES 1-10 (actual names unknown at this time),

Defendants.

INDEX NO.

**ATTORNEY'S
VERIFICATION**

Roberta D. Asher, an attorney duly admitted to practice law in the State of New York,
makes the following affirmation under the penalty of perjury:

I am of the firm of ASHER & ASSOCIATES, P.C., the attorneys of record for the
plaintiffs.

I have read the foregoing Complaint and know the contents thereof; the same is true to
my own knowledge except as to the matters therein stated to be alleged on information and belief
and that as to those matters, I believe them to be true.

This verification is made by affirmant and not by plaintiffs because they are not in the
County of New York, which is the County where your affirmant maintains offices.

The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge
are correspondence had with the said plaintiffs, information contained in the said plaintiffs' file,
which is in affirmant's possession, and other pertinent data relating thereto.

Dated: New York, New York
November 19, 2020

Roberta D. Asher
ROBERTA D. ASHER

Index No.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

DONALD DAVIS and LINDA VARGAS,

Plaintiffs,

-against-

P.O. HARONID PENA (Tax ID 963686), P.O. CHRISTOPHER CARTER (Tax ID 958374),
THE CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT and POLICE
OFFICERS JANE/JOHN DOES 1-10 (actual names unknown at this time),

Defendants.

SUMMONS and VERIFIED COMPLAINT

The Documents within are hereby certified pursuant to 22 N.Y.C.R.R. 130-1.1-a:

By: Roberta D. Asher
Roberta D. Asher

ASHER & ASSOCIATES, P.C.

Attorneys for Plaintiffs
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(212) 227-5000

PLEASE TAKE NOTICE

**NOTICE OF
ENTRY**

that the within is a (certified) true copy of a duly entered in the office of the Clerk
of the
within named Court on , 2020 .

**NOTICE OF
SETTLEMENT**

that an of which the within is a true copy will be presented to the Hon. one of
the of the within named Court, at , New York, on , 2020 , at
9:30 A.M.

Dated: